

**FIRST ENDORSEMENT**

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, October 7, 2022. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-23602 against Sergeant Ramon Reyes, Tax Registry No. 947395. The case was conferenced on September 22, 2022, before Assistant Deputy Commissioner of Trials Paul Gamble, who approved the negotiated penalty of a forfeiture of Three (3) vacation days, after a guilty plea.

*Jonathan Darche*

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Executive Director  
New York City Civilian Complaint Review Board





**DISPOSITION OF CHARGES**  
PD 468-142(Rev. 8-89)-2

CASE NO.  
2021-23602

BOOK & PAGE NO.  
Page 1 of 3

PERSONNEL ORDER NO.

|                    |                            |                     |                              |                                   |
|--------------------|----------------------------|---------------------|------------------------------|-----------------------------------|
| RANK/TITLE<br>SGT  | SURNAME,<br>REYES          | FIRST<br>RAMON      | M.I.<br>E                    | COMMAND<br>PBMN SPECIALIZED UNITS |
| SHIELD NO.<br>3998 | TAX REGISTRY NO.<br>947395 | SOCIAL SECURITY NO. | DATE APPOINTED<br>07/08/2008 |                                   |

|                          |         |
|--------------------------|---------|
| RANK/NAME OF COMPLAINANT | COMMAND |
|--------------------------|---------|

|                 |                      |                      |
|-----------------|----------------------|----------------------|
| DATE OF CHARGES | DATE TRIAL COMMENCED | DATE TRIAL CONCLUDED |
|-----------------|----------------------|----------------------|

TRIAL COMMISSIONER

| SPECIFICATION                                                                                                                                                                                                                                                                                                                                                                                 | DISPOSITION    | RECOMMENDED PENALTY<br>PLEA [X] TRIAL [ ]                                                                    |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|--------------------------------------------------------------------------------------------------------------|
| 1 . Sergeant Ramon Reyes, on or about July 5, 2019, at approximately 0110 hours, while assigned to PBMNSU and on duty, in the vicinity of 118th Street between 5th Avenue and Lenox Avenue, New York County, abused his authority as a member of the New York City Police Department, in that he frisked § 87(2)(b) without sufficient legal authority.                                       | PLEADED GUILTY | VACATION DAYS 3.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated. |
| 2 . Sergeant Ramon Reyes, on or about July 5, 2019, at approximately 0110 hours, while assigned to PBMNSU and on duty, in the vicinity of 118th Street between 5th Avenue and Lenox Avenue, New York County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) without sufficient legal authority.                                      | PLEADED GUILTY |                                                                                                              |
| 3 . Sergeant Ramon Reyes, on or about July 5, 2019, at approximately 0110 hours, while assigned to PBMNSU and on duty, in the vicinity of 118th Street between 5th Avenue and Lenox Avenue, New York County, abused his authority as a member of the New York City Police Department, in that he searched the vehicle in which § 87(2)(b) was an occupant without sufficient legal authority. | PLEADED GUILTY |                                                                                                              |
| 4 . Sergeant Ramon Reyes, on or about July 5, 2019, at approximately 0110 hours, while assigned to PBMNSU and                                                                                                                                                                                                                                                                                 | PLEADED GUILTY |                                                                                                              |

Edward A. Caban 01/26/23  
FIRST DEPUTY COMMISSIONER DATE

**POLICE COMMISSIONER'S APPROVAL**

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Caban 2/15/23  
POLICE COMMISSIONER DATE



**DISPOSITION OF CHARGES**  
PD 468-142(Rev. 8-89)-2

CASE NO.  
2021-23602

BOOK & PAGE NO.  
Page 2 of 3

PERSONNEL ORDER NO.

|                          |                            |                      |                              |                                   |
|--------------------------|----------------------------|----------------------|------------------------------|-----------------------------------|
| RANK/TITLE<br>SGT        | SURNAME,<br>REYES          | FIRST<br>RAMON       | M.I.<br>E                    | COMMAND<br>PBMN SPECIALIZED UNITS |
| SHIELD NO.<br>3998       | TAX REGISTRY NO.<br>947395 | SOCIAL SECURITY NO.  | DATE APPOINTED<br>07/08/2008 |                                   |
| RANK/NAME OF COMPLAINANT |                            |                      |                              | COMMAND                           |
| DATE OF CHARGES          |                            | DATE TRIAL COMMENCED |                              | DATE TRIAL CONCLUDED              |

TRIAL COMMISSIONER

| SPECIFICATION                                                                                                                                                                                                                                                                                                                                                   | DISPOSITION    | RECOMMENDED PENALTY<br>PLEA [X] TRIAL [ ] |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|-------------------------------------------|
| on duty, in the vicinity of 118th Street between 5th Avenue and Lenox Avenue, New York County, spoke discourteously to § 87(2)(b) saying, in sum and substance "I don't give a shit if you got your phone," without police necessity.                                                                                                                           |                |                                           |
| 5 . Sergeant Ramon Reyes, on or about July 5, 2019, at approximately 0110 hours, while assigned to PBMNSU and on duty, in the vicinity of 118th Street between 5th Avenue and Lenox Avenue, New York County, spoke discourteously to § 87(2)(b) saying, in sum and substance "I don't give a shit, alright. I saw the fucking plate," without police necessity. | PLEADED GUILTY |                                           |
| 6 . Sergeant Ramon Reyes, on or about July 5, 2019, at approximately 0110 hours, while assigned to PBMN SU and on duty, in the vicinity of 118th Street between 5th Avenue and Lenox Avenue, New York County, spoke discourteously to § 87(2)(b) saying, in sum and substance "You said all this shit works," without police necessity.                         | PLEADED GUILTY |                                           |
| 7 . Sergeant Ramon Reyes, on or about July 5, 2019, at approximately 0110 hours, while assigned to PBMN SU and on duty, in the vicinity of 118th Street between 5th Avenue and Lenox Avenue, New York County, spoke discourteously to                                                                                                                           | PLEADED GUILTY |                                           |

*Edward A. Cab...* 01/26/23  
FIRST DEPUTY COMMISSIONER DATE

**POLICE COMMISSIONER'S APPROVAL**

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

*Edward A. Cab...* 7/18/23  
POLICE COMMISSIONER DATE





**DISPOSITION OF CHARGES**  
PD 468-142(Rev. 8-89)-2

|                                           |
|-------------------------------------------|
| <b>CASE NO.</b><br>2021-23602             |
| <b>BOOK &amp; PAGE NO.</b><br>Page 3 of 3 |
| <b>PERSONNEL ORDER NO.</b>                |

|                                 |                                   |                             |                                     |                                          |
|---------------------------------|-----------------------------------|-----------------------------|-------------------------------------|------------------------------------------|
| <b>RANK/TITLE</b><br>SGT        | <b>SURNAME,</b><br>REYES          | <b>FIRST</b><br>RAMON       | <b>M.I.</b><br>E                    | <b>COMMAND</b><br>PBMN SPECIALIZED UNITS |
| <b>SHIELD NO.</b><br>3998       | <b>TAX REGISTRY NO.</b><br>947395 | <b>SOCIAL SECURITY NO.</b>  | <b>DATE APPOINTED</b><br>07/08/2008 |                                          |
| <b>RANK/NAME OF COMPLAINANT</b> |                                   |                             |                                     | <b>COMMAND</b>                           |
| <b>DATE OF CHARGES</b>          |                                   | <b>DATE TRIAL COMMENCED</b> |                                     | <b>DATE TRIAL CONCLUDED</b>              |

**TRIAL COMMISSIONER**

| <b>SPECIFICATION</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                        | <b>DISPOSITION</b> | <b>RECOMMENDED PENALTY<br/>PLEA [X] TRIAL [ ]</b> |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|---------------------------------------------------|
| <p>§ 87(2)(b) saying, in sum and substance "Because you saw the fucking car," without police necessity.</p> <p>8. Sergeant Ramon Reyes, on or about July 5, 2019, at approximately 0110 hours, while assigned to PBMN SU and on duty, in the vicinity of 118th Street between 5th Avenue and Lenox Avenue, New York County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) without sufficient legal authority.</p> | PLEADED GUILTY     |                                                   |

  
FIRST DEPUTY COMMISSIONER      DATE

**POLICE COMMISSIONER'S APPROVAL**

- ☐ Approved
- ☒ Disapproved
- ☐ Other Action (Describe)

  
POLICE COMMISSIONER      DATE



POLICE DEPARTMENT

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> floor  
New York, NY 10007

July 14, 2023

Re: CCRB Case No. 201907371 (Incident Date: July 5, 2019) involving Sergeant Ramon Reyes, Tax No. 947395 (DADS No. 2021-23602)

Dear Mr. Darche:

The Acting Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) recommended penalty settlement regarding the disciplinary matter involving Sergeant Ramon Reyes. The Acting Police Commissioner agrees with the findings of the CCRB regarding Sergeant Reyes's alleged misconduct. However, the Acting Police Commissioner disagrees with the proposed penalty.

The misconduct alleged to have been committed by Sergeant Reyes did not rise to the level where the imposition of Charges and Specifications was warranted. Rather, as is consistent with the CCRB's current practices and precedent, Sergeant Reyes' alleged misconduct should have been resolved through an imposition of a Command Discipline.

Therefore, the Acting Police Commissioner intends to dismiss the Charges and Specifications in this matter and Sergeant Reyes will be issued a Schedule "A" Command Discipline with the forfeiture of three (3) vacation days.

Yours truly,

  
Craig M. Contrera  
Inspector  
Executive Officer  
Police Commissioner's Office

cc: John D'Alessandro, Esq.

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ERIC L. ADAMS  
MAYOR

**CIVILIAN COMPLAINT REVIEW BOARD**  
100 CHURCH STREET 10th FLOOR  
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235  
[www.nyc.gov/ccrb](http://www.nyc.gov/ccrb)



ARVA RICE  
INTERIM CHAIR

July 18, 2023

The Honorable Edward Caban  
Police Commissioner  
New York City Police Department  
One Police Plaza  
New York, NY 10038

Re: CCRB Case No. 201907371 (Incident Date: July 5, 2019) involving SGT Ramon Reyes,  
Tax No. 947395, (DADS No. 2021-23602)

Commissioner Caban:

I am writing in response to the letter from INS Craig M. Contrera, dated July 14, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications in the above referenced matter. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to INS Contrera’s notification.

INS Contrera stated that after reviewing the recommendation of CCRB, you determined that the misconduct alleged to have been committed by SGT Reyes did not rise to the level where imposition of Charges and Specifications was warranted, but rather should have been resolved through an imposition of a Command Discipline. INS Contrera further stated that was no issue with the agreed upon penalty of forfeiture of three (3) vacation days.

At the time this plea was agreed to, the CCRB was not resolving APU cases for disciplines other than charges. Today, the CCRB is permitted to resolve APU cases for levels of discipline below that of Charges and Specifications. If the CCRB were to resolve this case today, and the respondent were to accept responsibility for the misconduct, the CCRB would have moved to dismiss the charges itself.

Respectfully submitted,

Jonathan Darche  
Executive Director  
NYC Civilian Complaint Review Board

Cc: John D'Alessandro, Esq.

**THIRD ENDORSEMENT**

First Deputy Commissioner to Police Commissioner, January 26, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2021-23602 against Sergeant Ramon Reyes, Tax #947395, for a forfeiture of three (3) vacation days. Assistant Deputy Commissioner, Trials Paul Gamble, reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I do not concur.

Charges and Specifications is an egregious penalty in regard to this case. After considering the totality of the circumstances, the Charges and Specifications should be dismissed. The Respondent should receive a Schedule "A" Command Discipline. Charges and Specifications should be reserved for the most serious misconduct. The Respondent's record should not be tarnished with Charges and Specifications. The Respondent did not himself physically conduct the stop but rather was the supervisor on scene. A Schedule "A" Command Discipline with the forfeiture of three (3) vacation days is an appropriate penalty in line with the Department's Disciplinary Matrix. **FOR YOUR CONSIDERATION**

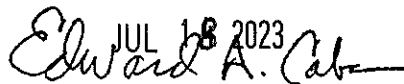


Edward A. Caban

**FIRST DEPUTY COMMISSIONER**

EAC/mc

**APPROVED**



**EDWARD A. CABAN**  
POLICE COMMISSIONER